



Board of Zoning Appeals Meeting May 28th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=e4hBpH3ITPs
Publication Date	2026-05-29T14:31:51Z
Target Category	delaware_county

Notice: This report is provided by the [Muncie Policy Memo](#) as a public service. This summary is generated automatically using artificial intelligence from public video transcripts, both of which are prone to error. The report is intended to provide an overview of meeting business and an aid to accessing detailed information from the video recording. When accuracy is critical, please refer to the official video recording or approved minutes.

Delaware Muny Metropolitan Board of Zoning Appeals Summary

Meeting Date: May 2026 (Monthly Meeting)

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting was called to order by the presiding officer for the May monthly meeting of the Delaware Muny Metropolitan Board of Zoning Appeals [00:01:05](#).
- **Attendance:**
 - **Present:** Matt Billington, Delaney Pritch, John Hamilton, Steven Hines, Richard Ivy, Christy Knap, and Leslie Matthew. (Full attendance, quorum met [00:02:09](#)).
 - **Absent:** None.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance [00:01:16](#).
- **Approval of Minutes:** The March 2026 regular monthly meeting minutes were approved with a vote of 6 yeses and 1 abstention (Hines abstained) [00:02:57](#).

- **Agenda Continuances:** The presiding officer announced that the following cases were continued and would not be heard this evening:
 - **00:03:22 BZA 2-26** (Davis Cary Company LLC / 1904 East 22nd Street) <U+2014> Continued to July 30, 2026, at 6:00 p.m.
 - **00:03:52 BZA 23-26** (Holly Reid / 8904 South US 35) <U+2014> Continued to June 25, 2026, at 6:00 p.m.
 - **00:04:12 BZA 29-26** (Mark A. Williams / 1208 North Country Club Road) <U+2014> Continued to June 25, 2026, at 6:00 p.m.

3. Substantive Business & Board Action

- **00:08:00 BZA 03-26: Variance of Use (Vegetative Composting Facility)**
 - **Sponsor / Presenter:** Mara Hoff (Attorney) alongside Adam Leech (City Engineer & MSD President) and Kathy Vanise (Ashton Surveying).
 - **Deliberation Summary:** The applicants requested a variance of use to develop a vegetative composting facility on an R3-zoned parcel (approx. 16.475 acres total, with ~4 acres utilized) located on the south side of Wilson Road (3800 East Wilson Road). The project aims to divert 700 tons of seasonal leaf waste and storm debris from landfills. The facility will be subject to IDEM registration, feature a 25-foot native vegetative buffer, a chain-link fence, an anaerobic treatment pond for nitrate mitigation, and zero burning of food waste. MSD committed to immediately repaving 753 feet of Wilson Road between the entrance and Bennett Road, adding gravel shoulders, and clearing local brush.
 - **Item-Specific Public Input:**
 - *Elizabeth Wilcox* (**00:33:59**, 4000 East Wilson Road): Opposed the location due to proximity, well water safety, and peaceful neighborhood character, while appreciating the addressed questions.
 - *Vicky Shields* (**00:34:55**, 3813 East Wilson Road): Opposed the location, noting the site sits 15 steps from her back door, raising concerns over property values, traffic, and pests.
 - *Olivia Hibball* (**00:38:47**, 3901 East Wilson Road): Expressed support for the concept of composting but opposed the residential neighborhood location.
 - *Melanie Grryer* (**00:39:44**, representing owner Joyce Doyle): Highlighted 53-year family ownership, property value concerns, and road weight limits on Bennett Road.
 - **Action & Vote Disposition:** Approved with conditions (repaving Wilson Road and adding gravel shoulders prior to use, and adhering to Article 31, Section 14 of the ordinance) via Roll Call: Passed 7-0 **05:27:09**.
- **00:58:40 BZA 16-26: Variance of Use (Counseling & Medical Services in Residential Zone)**

- **Sponsor / Presenter:** Jay Deutschman (Manager, DCRT LLC) alongside Julie Miers (Executive Director, Muncie Senior Center), Mayor Dan Ridenour, James Heimlick, Patrick Romac, Stephen Bran, and Pastor Elbert Isel.
 - **Deliberation Summary:** Request for a variance of use to allow counseling, behavioral health, and medical services (serving seniors, veterans, and the general public) at 2517 West 8th Street (historic Forest Park School / Muncie Senior Center). DCRT LLC contracted to purchase the property, offering a \$1/month lease to the Senior Center and Veterans Project to relieve massive operational and deferred maintenance strains.
 - **Item-Specific Public Input:** Julie Miers, Mayor Dan Ridenour, James Heimlick (Historic Preservation Officer), Patrick Romac (Veterans Project), Stephen Bran (County Commissioner), and Pastor Elbert Isel all spoke strongly in favor, citing the critical community need for mental health and veteran support services, historic building preservation, and the prevention of an empty, blighted building.
 - **Action & Vote Disposition:** Approved with the condition that the variance apply to the applicant only and not transfer with the property via Roll Call: Passed 7-0 [01:24:15](#). *(Note: Board legal counsel noted a conflict of interest and did not advise on this item).*
- [01:24:37](#) **BZA 22-26: Development Standards Variances (Fire Station)**
 - **Sponsor / Presenter:** Kathy Vanise (Ashton Land Surveying) for Indiana University Health Ball Memorial Hospital.
 - **Deliberation Summary:** Request for variances at 2321 and 2325 West Jackson Street to allow a reduced sidewalk along Jackson Street, no sidewalk along Britain Avenue, no marked pedestrian crosswalk, an increased build-to line, reduced shade/ornamental trees on the west side/rear, and reduced buffer plantings along the rear to accommodate a new fire station. The design prioritizes safe fire truck turning radiuses, maintaining two large healthy maple trees, and managing clear lines of sight.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved as presented via Roll Call: Passed 6-1 (Pritch voted no) [03:32:06](#).
- [01:32:37](#) **BZA 24-26: Development Standards Variances & Minor Plat (Duplex Platting)**
 - **Sponsor / Presenter:** Kathy Vanise (Ashton Land Surveying) for Renovation LLC.
 - **Deliberation Summary:** Request for side setback reductions for existing pre-owned duplexes to be separated through platting, and a minor plat request rather than a major plat to create 8 lots at 509 through 615 North Northwood Drive.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved with the condition that the platting process be completed and recorded via Roll Call: Passed 7-0 [01:36:30](#).

- **01:36:57 BZA 25-26: Variance of Use (Commercial Kitchen / Food Truck Commissary)**
 - **Sponsor / Presenter:** Britney Mock.
 - **Deliberation Summary:** Request for a variance of use to allow a commissary and commercial kitchen in an existing garage in a farm zone at 16670 North County Road 600 West (Washington Township) to support a food truck business.
 - **Item-Specific Public Input:** Steven Bran (County Commissioner's Office) spoke in favor, highlighting community involvement and support at the county fair.
 - **Action & Vote Disposition:** Approved with conditions (applicant-only variance, non-transferable, and subject to building commissioner and health department approvals) via Roll Call: Passed 7-0 [01:41:15](#).
- **01:49:34 BZA 26-26: Variance of Use (Auto & Diesel Repair Shop)**
 - **Sponsor / Presenter:** Lisa Johnson.
 - **Deliberation Summary:** Request for a variance of use to operate a small auto and diesel repair business out of an existing garage at 12701 East Jackson Street in a single-family residential zone. The applicants stated they were unaware of county zoning restrictions when relocating from Red Key. All work occurs indoors, operating primarily from 8 a.m. to 5 p.m.
 - **Item-Specific Public Input:**
 - *Zach Morgan* ([02:02:52](#)): Spoke in favor as a customer, praising the mechanic's reliability and professionalism.
 - *Rosalie Patton* ([02:04:04](#), adjacent neighbor at 12221 East Jackson Street): Opposed the accumulation of non-running vehicles, comparing the site's current appearance to a junkyard.
 - **Action & Vote Disposition:** Approved with conditions (applicant-only, non-transferable, no additional employees, all work/equipment/vehicles screened from public view, zero salvage activity including storage of non-running vehicles, and strict adherence to 8 a.m. to 5 p.m. hours) via Roll Call: Passed 5-2 (Nap and Pritch voted no) [02:17:07](#).
- **02:17:38 BZA 27-26: Variance of Use (Keeping Farm Animals in Residential Zone)**
 - **Sponsor / Presenter:** Britney and Colt Lemons.
 - **Deliberation Summary:** Request for a variance of use to keep farm animals (3 Nigerian dwarf goats, 6 hens, 1 rooster) at 1411 East Roarton Drive (Hamilton Township) in a single-family residential zone. The applicants noted the animals provide therapeutic support for their children and are strictly housed within a secure fenced-in area.
 - **Item-Specific Public Input:** *James Nixon* ([02:30:33](#), adjacent neighbor) spoke in favor, noting no issues with noise, odor, or containment.
 - **Action & Vote Disposition:** Approved with the condition that the variance be for the applicant only and non-transferable via Roll Call: Passed 7-0 [02:32:40](#).

- **02:33:12 BZA 28-26: Variances (Farm Animals, Egg Sales, Signage, & Accessory Structure Size)**
 - **Sponsor / Presenter:** Cheryl Gist.
 - **Deliberation Summary:** Request for variances at 11905 East Jackson Street (Liberty Township) in a single-family zone to allow keeping farm animals (horses, llamas, chickens, goats, a cow), selling eggs with a small roadside sign on Saturday mornings, and allowing an accessory structure (hoop barn) total floor area to exceed that of the primary dwelling.
 - **Item-Specific Public Input:**
 - *William Murphy* (02:41:56, adjacent neighbor): Spoke in favor, confirming well-maintained animals, clean grounds, and operable vehicles.
 - *Rosalie Patton* (02:42:53, nearby neighbor): Spoke in favor, noting her own background with livestock and the agricultural history of the corridor.
 - **Action & Vote Disposition:** Approved with the condition that the variance be for the applicant only and non-transferable via Roll Call: Passed 7-0 02:45:57.
- **02:46:19 BZA 30-26: Corridor Standards Variances (Muncie Housing Authority Storage Facility)**
 - **Sponsor / Presenter:** Kathy Vanise (Ashton Land Surveying).
 - **Deliberation Summary:** Request for variances from the City of Muncie comprehensive zoning ordinance to allow a storage building for Muncie Housing Authority equipment and reduced landscaping in rear and side buffer yards at the northeast corner of Madison Street and 9th Street (BV-zoned business district). The applicant cited utility conflicts (overhead electric lines on Madison, underground gas lines on 9th) preventing standard green belt tree plantings.
 - **Item-Specific Public Input:**
 - *Mara Hoff* (02:54:25, speaking for YWCA): Noted the YWCA's \$11 million investment in the adjacent Garfield Elementary property and requested that landscaping/corridor standards be maintained or relocated elsewhere on the lot rather than waived entirely.
 - *Leslie McCroy* (02:36:33, President, South Central Neighborhood Association / Urban Light Community Church): Voiced neighborhood opposition, citing a lack of a cohesive Madison Street corridor plan, weariness of industrial storage uses on gateway green spaces, and a preference for pedestrian-friendly placemaking.
 - *Kylie Tmaine* (03:02:46, Neighborhood Association Board Member & Habitat homeowner): Voiced strong opposition to bypassing beautification rules for a storage facility on remaining green space.
 - **Action & Vote Disposition:** **Continued** to the next monthly meeting on June 25, 2026, at 6:00 p.m., to allow the development of a proposed landscaping plan via Roll Call: Passed 7-0 03:15:40.
- **03:16:21 BZA 31-26: Variance of Use (Duplex Conversion in Single-Family Zone)**

- **Sponsor / Presenter:** Jacob (Leasing Director, Campus Rentals / BNB Premier Properties LLC).
 - **Deliberation Summary:** Request for a variance of use to convert an existing single-family dwelling into a duplex (top and bottom 3-bed units), resulting in a total of three dwelling units on the parcel (including an existing legally non-conforming rear dwelling) at 1101 West Neely Avenue and 1111 North Locust Street. The applicant noted total bedroom count remains at six, parking conforms with existing allowances, and the exterior will receive a full modern aesthetic upgrade.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved with conditions (applicant to continue working with city engineer and DMMPC staff on parking; applicant to obtain all necessary permits including Muncie Fire Department and City Building Commissioner approvals) via Roll Call: Passed 6-1 (Rich voted no) [03:31:44](#).
-

4. Open Public Comment / Citizen Forum

- *Note:* General open floor public comment occurred via the item-specific public hearings listed above. No separate general citizen forum was conducted at the close of the agenda.
-

5. Administrative Updates & Adjournment

- **Staff / Board Announcements:** The next monthly meeting is scheduled for **June 25, 2026, at 6:00 p.m.**
 - **Adjournment:** The meeting officially adjourned following brief closing remarks from staff wishing members a safe drive home [03:32:30](#).
-

Muncie Policy Memo Civic Monitoring Automated Pipeline. Report generated on 2026-09-15 02:00:18 using model gemini-3.5-flash-lite.